

24STLC03282 24STLC03282

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC03282 Hearing Date: August 27, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Creditors Adjustment

Bureau, Inc.'s Motion to Enforce Settlement is granted. Judgment is to be entered in Plaintiff's favor and against Defendant ERLA Construction in the amount of \$4,000.00 principal, \$1,000.00 attorney's fees, and \$73.65 costs.

Plaintiff is to file and serve a proposed judgment in accordance with this ruling within 20 days.

Analysis:

Plaintiff Creditors Adjustment Bureau, Inc. ("Plaintiff") filed the instant action against Defendant ERLA Construction ("Defendant") on May 7, 2024. Defendant filed an answer to the Complaint on October 25, 2024. On April 14, 2026, Plaintiff filed a Notice of Settlement of Entire Case. On June 10, 2026, Plaintiff filed the instant Motion to Enforce Settlement Pursuant to CCP §664.6; Request for Fees and Costs. The Motion was served on the same day via first-class and electronic mail to Defendant through their attorney. To date, no opposition has been filed.

Discussion

The instant Motion is brought under Code of Civil Procedure, section 664.6, which states in relevant part:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the

court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(Code Civ. Proc., § 664.6, subd.

(a).) “Parties” include “an attorney who represents the party” and an insurer’s agent. (Code Civ. Proc., § 664.6, subd. (b).) The settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 985.) The settlement agreement complies with the statutory requirements set forth above because it was signed by both parties. (Motion, Hernandez Decl., Exh. 1, p. 3.)

The settlement provides that

Defendant would pay Plaintiff \$5,000.00 in four installment payments starting on April 17, 2026. (Id. at Exh. 1, ¶1.) Defendant made the first payment of \$1,000.00, but thereafter defaulted. (Id. at ¶4 and Exh. 2.)

Plaintiff moves for a judgment in the amount of \$4,000.00, plus reasonable attorney’s fees and costs in the amount of \$1,873.65. (Motion, p. 3:23-25.) In light of Defendant’s default, Plaintiff is entitled to a judgment of \$4,000.00 principal. The settlement also specifically provides for an award of reasonable attorney’s fees and costs on a motion to enforce the agreement. (Id. at Exh. 1, ¶10.) The Court finds the amount of attorney’s fees sought unreasonable given that the instant action is a straightforward collections case, the Motion is unopposed, and Plaintiff’s counsel can appear for the hearing remotely. (Id. at ¶7.) Nor does the supporting declaration demonstrate that \$600.00 is a reasonable hourly rate for the work performed. (Id. at ¶6.) Attorney’s fees are awarded at an hourly rate of \$400.00 for 2.5 hours of time, in the amount of \$1,000.00. Costs of \$73.65 are also awarded.

Conclusion

Plaintiff Creditors Adjustment

Bureau, Inc.’s Motion to Enforce Settlement is granted. Judgment is to be entered in Plaintiff’s favor and against Defendant ERLA Construction in the amount of \$4,000.00 principal, \$1,000.00 attorney’s fees, and \$73.65 costs.

Plaintiff is to file and serve a
proposed judgment in accordance with this ruling within 20 days.

Moving party to give notice.